Module 2: Overview and learning objectives

In this module, you will extend your knowledge and understanding of sexual harassment in the workplace. The module will cover its significance as well as the relevant laws and legal definitions crucial for understanding, preventing, and reporting such incidents.
By the end of this module, you will be familiar with the legal provisions of The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, or the POSH Act.

Learning Objectives:

- Define sexual harassment and identify its forms under the POSH Act, 2013.
- Describe the legal provisions and framework of the POSH Act, 2013.
- Recognize the importance of the POSH Act in preventing sexual harassment.
- Describe the effects of sexual harassment on individuals and organizations.
- Define the legal scope of "workplace" under the POSH Act, 2013.

What is sexual harassment?

Maya, a new employee at a tech firm, feels uncomfortable with her colleague's repeated inappropriate comments. Despite her discomfort, she hesitates to report the behavior, fearing retaliation or loss of her job.
Do you think that Maya's experience will be considered sexual harassment under the POSH Act?
This scenario highlights inappropriate comments, unwelcome sexual advances, and a hostile work environment - all potential forms of sexual harassment covered under the POSH Act.

Let's delve deeper into what sexual harassment is. Sexual harassment is a serious issue affecting individuals and workplace environments. Understanding what constitutes sexual harassment is vital for legal compliance, preventing misconduct, protecting employees, and maintaining a healthy workplace culture

Sexual harassment has been a longstanding issue, and the Supreme Court of India recognized it for the first time in the landmark 'Vishaka Judgment,' formally known as Vishaka and Others vs. State of Rajasthan.

Delivered in 1997, the Supreme Court of India considered workplace sexual harassment as a human rights violation under the Constitution of India and established guidelines to address sexual harassment in the workplace, which included:

- Defining sexual harassment
- Ensuring a safe work environment
- Mandating the employer to file a complaint
- Establishing a complaint redressal committee

- Assisting sexually harassed employees
- Promoting awareness and training
- Urging the government to expand these guidelines

These guidelines laid down under Vishakha Judgement provided the legal basis and framework for the enactment of the Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act 2013, also known as the Protection of Women from Sexual Harassment or POSH Act, 2013.

POSH Acts define sexual harassment in Section 2(n) and Section 3(1, 2).
As per Section 2(n), "sexual harassment" encompasses any one or more of the following unwelcome behaviors, whether explicit or implied, namely:

- Physical contact and advances
- A demand or request for sexual favors
- Making sexually colored remarks
- Showing pornography
- Any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature

Furthermore, Section 3(1, 2) of the Posh Act reads as:

1. No woman shall be subjected to sexual harassment at any workplace.
2. The following circumstances, among other circumstances, implied or explicit, if they occur or are present in relation to or connected with any act or behavior of sexual harassment, may amount to sexual harassment: —

- Promise of preferential treatment in employment or
- Threat of detrimental treatment in employment or
- Threat about present or future employment status or
- Interference with work, creating an intimidating, offensive, or hostile work environment or
- Humiliating treatment likely to affect health or safety

The POSH Act specifically protects working women in India.
However, your company's policies may be gender-neutral and broadly protect all its employees, identifying complainants or alleged perpetrators of sexual harassment as anyone, regardless of gender identity or sexual orientation.

Importance of understanding the POSH Act

Recently, a major IT company in India faced allegations of sexual harassment, including incidents of unwelcome gestures such as demands for sexual favors and other behaviors such as making sexually colored remarks. This led to severe reputational damage and portrayed the firm as unsafe for women. The allegations also brought significant legal challenges. The

company's HR department failed to adequately address the complaints, violating the POSH Act.
This scenario highlighted the criticality for organizations to understand and implement the POSH Act effectively. In-depth understanding and compliance not only ensure a safe work environment free from harassment for all employees, especially women, but also safeguard employees' rights and mitigate legal risks, nurturing a culture of respect and integrity.

The Prevention of Sexual Harassment or POSH Act in India incorporates key provisions that contribute to preventing and dealing with sexual harassment in the workplace. By understanding and implementing the provisions under this act, organizations can build safer and more inclusive environments for their personnel.
Additionally, the POSH Act recognizes sexual harassment as a violation of women's fundamental right to equality and requires that all workplaces, establishments, and institutions be held accountable for safeguarding these rights.

A healthy and informed organizational culture does not tolerate behaviors that impact an employee's personal dignity. Thus, it is vital that everyone knows their role in creating and maintaining a positive work environment.

Sexual harassment may present as either subtle or direct but is most easily identified and managed when you are prepared with the knowledge and understanding of what it entails.

Sexual harassment in the workplace can have serious and far-reaching effects on women, including emotional and psychological impact and physical health issues. It can also lead to professional consequences, disruptions to the work environment, and social and economic effects.

Sexual harassment affects not only the individuals directly involved but also has a broader impact on the organization or team. It leads to decreased worker productivity, low morale, lack of trust and communication, and increased absenteeism.
Additionally, it can harm a company's profitability, and failing to comply with legal requirements can result in substantial penalties.